

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 09, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINES</u> <u>1-2</u>	25CV469591	Nathan Pope vs Jonathan Drake et al	Demurrer (Line #1) and Motion for Stay (Line #2) OFF CALENDAR as WITHDRAWN. On June 4, 2026, counsel for Plaintiff Nathan Pope, California Department of Transportation, Greystar, Sobrato et al, SI LLC, ECC, LLC and Underground Republic appeared in Department 1 at 11 a.m. for a mediation status hearing. No appearances were made on behalf of Jonathan Drake and Amber Drake. At the hearing, counsel indicated mediation had not commenced as several new parties appeared in the case. Parties also received notice that the moving party had requested to vacate the June 9 hearing given the case status. On May 29, 2026, moving parties/Defendant Jonathan Drake and Amber Drake filed a motion to continue the Demurrer (Line #1) and Motion to Stay (Line #2). On April 17, 2026, Jonthan Drake filed a motion to stay (totaling 18 pages), the motion was accompanied by a proof of service indicating email service to the plaintiff on that same day. Defendant Underground filed opposition papers to the motion to stay (totaling 7 pages). On April 30, 2026, Amber Drake filed a demurrer the plaintiff's Second Amended Complaint ("SAC")(totaling 23 pages) that was accompanied by proof of service on March 6, 2026. On March 3, 2026, the Honorable Shella Deen issued an order, pursuant to stipulation, allowing the plaintiffs to file a Third Amendment Complaint ("TAC"), but also stated, "In the event Plaintiffs are unable or do not file a [TAC], ... Plaintiffs' prayer for punitive damages against Defendants is stricken from Plaintiffs' [SAC]." Plaintiffs did not file a TAC.

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LAW AND MOTION TENTATIVE RULINGS

			On March 6, 2026, Plaintiffs filed a DOE Amendment substituting defendant Amber Drake for Doe Defendant #1. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the demurrer and motion to stay is OFF CALENDAR at parties request.
<u>LINE 3</u>	26CV492170	California Civil Rights Department vs Arcadia Management Services Co.	Application Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 4	22CV397674	Teng Wu vs General Motors, LLC	Motion for Attorney's Fees and Cost Scroll down to Line 4 for Tentative Ruling.
LINE 5	25CV468882	City and County of San Francisco vs Matt Pear et al	Motion to Bifurcate Trial of Complaint for Declaratory Relief Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV481376	Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al	Motion to Confirm Arbitration Award Scroll down to Line 6 for Tentative Ruling.

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9:01 A.M.			
LINE 1	Null	Null	NULL

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9:00 A.M.

Calendar Lines # 3

Case Name California Civil Rights Department vs Arcadia Management Services Co.

Case No. 26CV492170

Application for an Order to Show Cause

I. BACKGROUND

On May 5, 2026, Petitioner/California Civil Rights Department (“CRD”) filed an ex parte application for an order to show cause against Respondent Arcadia Management Services, Co. (“Arcadia”) under Government Code section 12963.5. Respondent opposed the application on that same day. The Court denied without prejudice the first application for further proof. CRD then filed a second ex parte application for an order to show cause compliance with investigative discovery on the same respondent Arcadia on May 20, 2026. CRD attempted to file the motion by noticed motion, but was not given a date until December 10, 2026. CRD filed an order shortening time before June 11, 2026. Arcadia again opposed the application. The Court granted the application and set the matter for an order to show cause no less than 10 day from the date of the Order to Show Cause and no more than 45 days from filing the Petition to Compel per Government Code section 12963.5(b).

The Court has carefully reviewed: CRD’s notice of ex parte application (totaling 2 pages); CRD’s memorandum of points and authorities (totaling 5 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 34 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 2 pages); CRD’s notice of ex parte application (totaling 3 pages); CRD’s memorandum of points and authorities (totaling 8 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 35 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 8 pages); Arcadia’s request to continue hearing and extend time to appear, declaration of sing and proposed order (totaling 6 pages); Arcadia’s reply brief (totaling 4 pages); and Declaration of Nassim Moallem in support of petition to compel and response to Respondent’s request to continue hearing (totaling 11 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. INVESTIGATIONS UNDER THE FAIR EMPLOYMENT AND HOUSING ACT

California Government Code section 12955 is part of the Fair Employment and Housing Act (“FEHA”) and prohibits housing discrimination, harassment, and relation in the state. Section 12955 prohibits unlawful conduct regarding housing such as refusal to rent, lease, sell, mortgage, finance, or otherwise discriminate against individuals based on projected categories including: race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, disability, veteran or military status, or genetic information. (Gov. Code §12955 et seq.).

Government Code section 12930 sets forth the responsibly of CRD (formerly known as the Department of Fair Employment and Housing) for investigating and prosecuting violations under the California civil rights laws, including claims under FEHA.

Government Code section 12980 provides:

- (a) Any person claiming to be aggrieved by an alleged violation of Section 12955, 12955.1, 12955.1, or 12955.7 may file with the department a verified complaint in writing that shall state the name and address of the person alleged to have committed the violation complained of, and that shall set

forth the particulars of the alleged violation and contain any other information required by the department. The filing of a complaint and pursuit of conciliation or remedy under this part shall not prejudice the complainant's right to pursue effective judicial relief under other applicable laws, but if a civil action has been filed under section 52 of the Civil Code, the department shall terminate proceedings upon notification of the entry of final judgment unless the judgment is a dismissal entered at the complainant's request.

- (b) The Attorney General or the director may, in a like manner, make, sign, and file complaints citing practices that appear to violate the purpose of this part or any specific provisions of this part relating to housing discrimination. No complaint may be filed after the expiration of one year from the date upon which the alleged violation occurred or terminated.
- (c) The department may thereupon proceed upon the complaint in the same manner and with the same powers as provided in this part in the case of an unlawful practice, except that where the provisions of this article provide greater rights and remedies to an aggrieved person than the provisions of Article 1 (commencing with section 12960), the provisions of this article shall prevail.
- (d) Upon the filing of a complaint, the department shall serve notice upon the complainant of the time limits, rights of the parties, and choice of forums provided for under the law.
- (e) The department shall commence proceedings with respect to a complaint within 30 days of filing of the complaint.
- (f) An investigation of allegations contained in any complaint filed with the department shall be completed within 100 days after receipt of the complaint, unless it is impracticable to do so. If the investigation is not completed within 100 days, the complainant and respondent shall be notified, in writing, of the department's reasons for not doing so.
- (g) Upon the conclusion of each investigation, the department shall prepare a final investigative report containing all of the following: (1) The names of any witnesses and the dates of any contacts with those witnesses. (2) A summary of the dates of any correspondence or other contacts with the aggrieved persons or the respondent. (3) A summary of witness statements. (4) Answers to interrogatories. (5) A summary description of other pertinent records. A final investigative report may be amended if additional evidence is later discovered.
- (h) If a civil action is not brought by the department within 100 days after the filing of a complaint, or if the department earlier determines that no civil action will be brought, the department shall promptly notify the person claiming to be aggrieved. This notice shall, in any event, be issued no more than 30 days after the date of the determination or 30 days after the date of the expiration of the 100-day period, whichever date first occurs. The notice shall indicate that the person claiming to be aggrieved may bring a civil action under this part against the person named in the verified complaint within the time period specified in Section 12989.1. The notice shall also indicate, unless the department has determined that no civil action will be brought, that the person claiming to be aggrieved has the option of continuing to seek redress for the alleged discrimination through the procedures of the department if the person does not desire to file a civil action. The superior courts of the State of California shall have jurisdiction of these actions, and the aggrieved person may file in these courts. The action may be brought in any county in the state in which the violation is alleged to have been committed, or in the county in which the records relevant to the alleged violation are maintained and administered, but if the defendant is not

found within that county, the action may be brought within the county of the defendant's residence or principal office. A copy of any complaint filed pursuant to this part shall be served on the principal offices of the department. The remedy for failure to send a copy of a complaint is an order to do so. In a civil action brought under this section, the court, in its discretion, may award to the prevailing party reasonable attorney's fees.

CRD is vested with subpoena power and authority to propound written interrogatories and request for production as part of its duty to investigate and determine if there is reason to believe an unlawful practice has occurred prior to filing a civil action. (Gov. Code, §§ 12981 (a)(1)-(2), 12963.1, 12963.2, and 12963.4).

B. ORDER TO SHOW CAUSE AND COMPEL RESPONSES UNDER GOVERNMENT CODE SECTION 12963.5

If a person or entity fails to comply or fully respond to CRD's investigative discovery requests, CRD is authorized to petition a trial court to compel full responses. Pursuant to California Government Code section 12963.5:

- (a) The superior courts shall have jurisdiction to compel the attendance and testimony of witnesses, the production of books, records, documents, and physical materials, and the answering of interrogatories. If an individual or organization fails to comply with a subpoena, interrogatory, request for production, or examination under oath by refusing to respond fully or objecting thereto, or by obstructing any proceeding before the department, the department may file with a superior court a petition for an order compelling compliance, naming as respondent the individual or organization that has failed to comply. Such an action may be brought in any county in which the department's investigation or inquiry takes place, or in the county of the respondent's residence or principal office.
- (b) The petition shall describe the inquiry or investigation before the department, the basis for its jurisdiction therein, and state facts showing that the subpoena, interrogatory, request for production, or examination under oath was issued or carried out in accordance with the requirements of this part, that the information sought was identified with sufficient particularity to permit response and is reasonably relevant to the inquiry or investigation before the department, and that the respondent has failed to comply. If the petition sets forth good cause for relief, the court shall issue an order to show cause to the respondent; otherwise the court shall enter an order denying the petition. The order to show cause shall be served, along with the department's petition, on the respondent in the same manner as summons must be served in civil actions, and the order shall be returnable not less than 10 days from its issuance nor later than 45 days after the filing of the petition. The respondent shall have the right to serve and file a written answer or other response to the petition and order to show cause.
- (c) Unless otherwise stipulated by the parties, the court shall no later than 30 days after the filing of the petition file its order granting or denying the petition. However, the court may on its own motion for good cause extend such time an additional 30 days. If the order grants the petition in whole or part, the order shall set forth the manner in which the respondent shall comply and the period of time following the effective date of the order within which such compliance is required. A copy of the order shall be served by mail by the clerk upon the parties. If the order grants the petition in whole or in part, the order shall not become effective until 10 days after it is served. If the order denies the petition, it shall become effective on the date it is served.

- (d) The order of the superior court is immediately appealable in the court of appeal. A party aggrieved by such order, or any part thereof, may within 15 days after the service of the superior court's order, serve and file a notice of appeal. The appeal shall have precedence in the court to which the appeal is taken and shall be determined as soon as practicable after the notice of appeal is filed.

III. ANALYSIS

CRD brings an order to show cause and compelling compliance based on section 12963.5 and must show that: (i) a description of the inquiry or investigation before the Department; (ii) the juridical basis for the Department's investigation; (iii) facts showing the Department's investigative discovery was properly issued and served; (iv) information sought was identified with sufficient particularity and reasonably relevant to the inquiry or investigation; and (v) the respondent failed to fully comply.

Here, CRD asserts it is investigating inquiry and investigation of discrimination. On October 10, 2025, CRD's Director, Kevin Kish, issued a Director's Complaint for systemic group or class relief containing allegations that Arcadia and other entities engaged in a pattern of practice of systematic discrimination against a group or class of tenants on the basis of source of income. (Declaration of Nassim Moallem, p. 1). Specifically, Respondent engages in a pattern of discrimination against tenants with housing subsidies, including section 8 voucher holders at rental apartments that Arcadia manages in San Jose in violation of FEHA and Unruh under Government Code sections 12961 and 12980. (Exhibit A, Declaration of Moallem, p. 11). The Director's Complaint include allegations that respondent is evicting or threatening eviction by issuing 90-Day Notice of Termination of Tenancy stating that Arcadia is seeking to "opt out" of section 8 program; respondent is subjecting section 8 tenants to different terms and conditions; and offering unequal leasing terms and steering section 8 tenants to certain areas of rental properties. (*Id.*).

As part of its investigation, on October 10, 2025, CRD issued and served Arcadia's agent of service with Request for Production of Documents, set one and investigative interrogatories, set one via certified mail. (*Id.*, at p. 12). Per CRD, Respondent received the requests on or before October 20, 2025. (*Id.*). CRD cites that it seeks information deemed necessary to determine whether to charge a statutory violation or make a decision that no further action is necessary. (*Id.*, citing (*Dept. Fair Empl. & Hous. v. Super. Ct. (Keller)* (2002) 99 Cal.App.4th 896, 902.) CRD asserts this administrative investigation is construed broadly. (*Id.*, citing (*State Water Resources Control Bd. v. Baldwin & Sons, Inc.* (2020) 45 Cal.App.5th 40, 57-58 [describing the definition of relevance in such investigations as "expansive" and "broad"]].)

CRD seeks investigative discovery relevant to its investigation as to whether or not Arcadia has violated FEHA and Unruh. CRD compels four categories:

- (1) ***Witness and/ or potential group or class members. (Interrogatories Nos. 14-20, 25 and Request for Production of Documents Nos. 12, 15, 19-23).*** CRD seeks documents and information regarding current and prospective section 8 tenants at Arcadia's properties. CRD seeks names and contact information. CRD asserts it needs to be able to identify and interview individuals who are potential witnesses to the alleged conduct and/or group or class members.
- (2) ***Tenant Evictions. (Interrogatories Nos. 16-17 and Request for Production of Documents Nos. 3-5).*** CRD seeks documents and information regarding all evictions at the property that it states is relevant to section 8 tenants evictions or threats of evictions.
- (3) ***Rent setting and increases. (Interrogatories Nos. 24 & 26 and Request for Production of Documents Nos. 7-9 & 11).*** CRD seeks information and documents relating to Arcadia's rent setting and increases to

determine if section 8 tenants were subjected to different terms and conditions. CRD seeks information including rent rolls, rent increase notices, and rent listings for the last three years.

- (4) Relevant Communications. (*Interrogatories Nos. 17 and Request for Production of Documents Nos. 13, 14 & 18*). CRD seeks information reflecting communication related to decisions about section 9 tenants.

(*Id.*, at p. 13-14).

CRD avers that Arcadia as failed to comply with discovery. (*Id.*, at p. 14-15). Arcadia served responses to initial discovery on November 19, 2025. (*Id.*, at p. 15.). CRD notes deficiencies in responses as noted above. After meeting-and-conferring Arcadia provided supplemental production on January 23, 2026. (*Id.*). CRD met-and-conferred with Arcadia, which provided written responses, but declined to discuss further or comply. (*Id.*). CRD argues that Arcadia’s assertion of privacy and confidentiality interests lack merit given the type of investigation. (*Id.*). CRD emphasizes its compelling interest in prohibits discrimination as outweighing any privacy interests of former and current rental applications. (*Id.*). CRD also notes its investigations are confidential pursuant to Government Code section 11183. (*Id.*). CRD also asserts Arcadia fails to show that the discovery is overboard or unduly burdensome. (*Id.*). CRD asserts that the requested information should be maintained as part of Respondent’s course of business. (*Id.*, at p. 16).

CONCLUSION

Based on the foregoing, the Court will hear oral arguments. Parties to appear.

Calendar Lines # 4

Case Name Teng Wu vs General Motors, LLC

Case No. 22CV397674

Motion for Attorney’s Fees, Cost, and Multiplier

I. BACKGROUND

Before the court is Plaintiff Teng Wu’s motion for attorney’s fees, costs and enhancer based on a resolution of Song-Beverly Consumer Warrant Act claim arising out of Plaintiff’s 2019 Chevrolet Bolt, vehicle identification number 1G1FY6S04K4135781. (Plaintiff’s Motion, p. 7). Plaintiff accepted a 998 offer in the amount of \$55,000.00 cash plus pre-judgment interest in the amount of \$15,279.46 for a total settlement amount of \$70,279.46 (*Id.*). Based on this resolution, plaintiff asserts itself as the prevailing party and seeks a total of \$45,851.96¹ in attorney’s fees, costs, and multiplier. (Plaintiff’s Reply Brief, p. 5). The motion was filed on September 8, 2025, the motion was accompanied with a proof of service indicating electronic service on September 4, 2025.

On May 27, 2026, Defendant Ford Motor Company (“Ford”) filed opposition papers on the grounds that the plaintiff’s motion is untimely and the amount sought is unreasonable and excessive given the type of case and 23 months of inactivity. (Defendant’s Opposition, p. 5). Plaintiff filed a reply brief on June 2.

The Court has carefully reviewed the following: Plaintiff’s notice and memorandum of points and authorities (totaling 21 pages); Declaration of Payam Shahian in support of plaintiff’s motion and attached Exhibits 1-28

¹ The Court notes that in the original moving parties, Plaintiff Wu sought \$47,401.96, but in its subsequent reply brief, the plaintiff seeks a total amount of \$45,851.96. There is a \$1,550.00 reduction from the original \$4,000.00 amount for opposition briefs and appearing for this hearing.

(totaling 277 pages); Declaration of Angel M. Baker in support of plaintiff's motion and attached Exhibits 1-4 (totaling 48 pages); proof of service (totaling 3 pages); Plaintiff's Exhibit List (totaling 7 pages); Plaintiff's request for judicial notice (totaling 7 pages); Defendant's opposition (totaling 24 pages); Declaration of Xylon Quezada in support of the defendant's opposition² (totaling 7 pages); and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

III. ANALYSIS

Plaintiff seeks attorney's fees, cost, enhancer, and anticipated fees and costs in total amount of \$45,851.96 based on a \$70,279.46 resolution of a claim brought under the Song-Beverly Act as follows: \$55,000.00 cash based on a 998 offer and \$15,279.46 in pre-judgment interest. (Plaintiff's motion, p. 7). The breakdown of the total amount consists of the following: (1) \$30,784.00 in attorney's fees based on 60.2 hours spent by 16 attorneys; (2) a 1.35 multiplier on

² Declaration of Quezada reference exhibits A-X, but no such attachments were filed with the Court. There is an attached Exhibit Y reflecting the reduction of hours and fees.

the attorney fees in the amount of \$10,774.40; (3) \$1,843.56 in costs and expenses; and (4) an anticipated additional \$2,450.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. (*Id.*).

The plaintiff seeks judicial notice of 26 separate documents Exhibits 1-26 to establish various Song-Beverly cases. The court denies this request as it will not take the substance of the document for the truth of the matter and relevancy to the extent that the Court will engage in an individual assessment of the case at hand. However, the Court has reviewed the documents.

Defendant opposes the motion on the following grounds: the motion is untimely, the attorney's fees are excessive, unreasonable, padded, overstaffed; plaintiff has not met its burden of proving costs; a multiplier is unwarranted given the straightforward nature of the case and plaintiff's use of boilerplate templates for the complete, discovery, and pleadings; and that anticipated costs should be rejected. (Declaration of Quezada, p. 2-3). Defendant accentuates that from March 31, 2022 through May 25, 2022, plaintiff counsel's billing records show no activity. (*Id.*). Accordingly, defense seeks to strike the 45.1 hours for a total reduction of \$22,736.00 in attorney's fees incurred in preparing the motion. (Defendant's Opposition, Exhibit Y, p. 23). Defendant avers that no multiplier is warranted as the plaintiff failed to show any unique skill in dealing with any novel or difficult issues. Rather, Defendant asserts that the plaintiff served standard template-based pleadings, letters, and discovery work that was similarly filed in every Song-Beverly matter that SLP files against Defendant General Motors (Declaration of Quezada, p. 2-3). Further, defendant contends that like "clockwork" the plaintiff submitted "routine" template letters and motions common in other cases that did not bear substantively unique work. (*Id.*). Defendant also asserts that plaintiff has not meet its burden of proving costs and anticipated costs.

A. ATTORNEY'S FEES

Plaintiff's counsel asserts it would not have received the 998 offer without its diligent efforts including: filing a Complaint; First Amended Complaint; propounding discovery; filing a motion to compel; filing an opposition to defendant's demurrer and motion to strike; responding to discovery; filing eight motions in limine; reviewing two 998 offers made by defense (upon review of the file, the first 998 offer on or about 12/20/24 was for \$27,000.00 and the second 998 offer on or around 1/24/2024 was for \$55,000.00 case and pre-judgment interest in the amount of \$15,279.46 for a total of \$70,279.46 in the amount of \$15,279.46 for a total of \$70,279.46); and attending multiple court hearings. (Plaintiff's motion, p. 8; Declaration of Angel M. Baker, p. 4-5). Plaintiff emphasizes that the second 998 offer that ultimately resolved the case was made three days before trial. (*Id.*, at p. 9). Plaintiff rejects defense's argument that efforts were excessive and unnecessary, and asserts its right to prepare for trial. (*Id.*). Plaintiff counsel asserts that but for its efforts, the higher 998 offer that resulted in resolution would not have occurred. Plaintiff seeks 60.20 hours for attorney's fees. Plaintiff claims that although 15 attorneys and 1 law clerk were staffed on the case, only 6 attorneys (Elizabeth Larocque, James Carroll, Mark Gibson, Jared Kaye, Ian McCallister, and Rebecca Neubauer) and 1 law clerk (Yenok Tantanyan), accounted for 40.8 of the 60.2 hours claimed. (*Id.*, at p. 16, fn. 8). Plaintiff asserts that the remaining attorneys, such as attorneys. (*Id.*).

Plaintiff sets forth the experience of SLP attorney's (Declaration of Shahian, p. 20) and also sets forth a Laffey Matrix fees and argues that its fees are lower than attorney's in this region. The six attorneys who were primarily assigned to the case submit rates as follows:

James Carroll 11-19 \$1,023.84 (\$948 x 1.08) \$595
Elizabeth Larocque 20+ \$1,232.28 (\$1141 x 1.08) \$650
Mark Gibson 11-19 \$1,023.84 (\$948 x 1.08) \$485
Rebecca Neubauer 11-19 \$1,023.84 (\$948 x 1.08) \$435
Jared Kaye 4-7 \$627.48 (\$581 x 1.08) \$395

Ian McCallister 20+ \$1,232.28 (\$1141 x 1.08) \$610

Plaintiff's counsel also submitted a timekeeper summary under Exhibit 28, Declaration of Shahian, p. 274-277.

Exhibit 28, Declaration of Shahian, p. 269-272).

Timekeeper Summary

Carroll, James	2022	8.1	\$595.00	\$4,819.50
Carroll, James	2023	3.7	\$595.00	\$2,201.50
Carroll, James	2024	0.8	\$595.00	\$476.00
Carvalho, Tionna	2024	0.4	\$595.00	\$238.00
Carvalho, Tionna	2025	2.4	\$650.00	\$1,560.00
Gibson, Mark	2022	3.0	\$485.00	\$1,455.00
Hollingsworth, Tyler	2022	2.6	\$595.00	\$1,547.00
Kaye, Jared	2023	3.9	\$395.00	\$1,540.50
Larocque, Elizabeth	2022	8.2	\$595.00	\$4,879.00
Larocque, Elizabeth	2025	0.8	\$650.00	\$520.00
Liou, Regina	2023	2.3	\$475.00	\$1,092.50
Liou, Regina	2024	0.5	\$525.00	\$262.50
McCallister, Ian	2024	0.8	\$595.00	\$476.00
McCallister, Ian	2025	2.4	\$610.00	\$1,464.00
Mendoza, Albert	2023	1.5	\$390.00	\$585.00
Neubauer, Rebecca	2022	3.6	\$435.00	\$1,566.00
Orte, Maro	2025	2.2	\$525.00	\$1,155.00
Randolph, Ebony	2023	0.8	\$375.00	\$300.00
Sanaia, Nino	2023	1.1	\$425.00	\$467.50
Sanaia, Nino	2024	1.0	\$435.00	\$435.00
Tantanyan, Yenok	2025	5.5	\$345.00	\$1,897.50
Thomas, Nadia	2022	1.7	\$450.00	\$765.00
Tirmizi, Rabiya	2022	0.4	\$360.00	\$144.00
Tirmizi, Rabiya	2023	2.5	\$375.00	\$937.50
Total:				\$30,784.00

Defendant argues that the attorney's fees request which came eight months after the plaintiff accepted the defendant's 998 offer is untimely. Further, the request for \$30,784.00 for 60.2 alleged hours of billable time is excessive, unreasonable, padded, and unreasonable. (Declaration of Quezada, p. 5). Defendant avers that staffing the case with 16 attorneys, 7 of whose billable hours exceed \$500.00 is unreasonable and excessive based on the straightforward nature and minimal litigation conducted in this matter. (Defendant's opposition, p. 6). Defendant stresses that based on plaintiff counsel's billing records there is an over 23 months of inactivity and the matter resolved in less than a year. (*Id.*). Defense asserts that the matter did not go to trial (*Id.*). Defendant also avers that the bulk of its complaint, letters, discovery were boilerplate and templated from similar Song-Beverly claims filed against GM. (*Id.*, at p. 7). Defendant also contends that no compensation should be allocated to 20 hours of billed hours amounting to \$10,340.00 for work relating to the fraud claim, which was baseless. (*Id.*, at p. 11-12). Defendant seeks a reduction of 19.1 hours for blocked billing and excessive time as well as any time relating to the templated motion to compel as the motion was never heard. (*Id.*). In total, defense seeks at least 45.1 hours or \$22,736.00 to be deducted as not properly compensable and a 15% or \$1,270.20 reduction to address padding. (*Id.*, at p. 19). Defendant claims that no more than \$6,840.80. Below is Exhibit Y to defendant's opposition: p. 21-24.

TASK REDUCTION IN HOURS IN FEES

Fraud-Related Time 10.0 \$5,170.00
Drafting Templated Complaint 1.3 \$773.00
Business Record Subpoenas 0.8 \$476.00
Templated Discovery Requests 2.5 \$1,212.50
Templated Meet and Confer 1.8 \$1,050.00
Templated Discovery Responses 1.0 \$595.00
Templated & Unnecessary Motion to 15.2 \$7,706.50
Compel Further Responses
Templated Motions in Limine 2.9 \$1,725.50
Templated Fee Opposition 2.0 \$690.00
Block-Billed Time Preparing For & 7.6 \$3,584.00
Attending Conferences
TOTAL (Lodestar) 45.1 \$22,736.00

The Court has reviewed the briefing and specifically the time entries submitted, and the arguments presented in support of the hourly rates requested and opposition. The Court reduces 1 hour for the initial complaint and supporting documents for attorney Tyler Hollingsworth at the rate of \$595.00; court reduces 0.6 hours from attorney Hollingsworth for drafting subpoena for business records from custodian at \$595.00 per hour; 2 hours reduced from straightforward basic and template form interrogatories, special interrogatories, and request for production, set one is overcharged given the basic nature of the case at the hourly rate of \$485 per hour from Mark Gibson; reduction of templated meet and confer hours by 1.8 hours in the hourly average rate of \$583.33; reduction of 6 hours at the hourly rate of \$595.00 from attorney Elizabeth Larocque for templated motion to compel further responses; reduction of 1 hour for drafting motions in limine at the rate of \$610.00 from Ian McCallister; and reduction of 3 hours at the average hourly rate of \$471.58 for block billing on preparation for and attending conferences.

The Court DENIES the full amount of attorney's fees requested in the amount of \$30,784.00, and instead GRANTS attorney's fees in the amount of \$22,217.32

B. COST

Plaintiff seeks \$1,843.56 in costs and expenses related to litigating and resolving this matter. (Exhibit 28 of Declaration of Shahian). The costs were incurred from April 19, 2022, the date the plaintiff's Complaint was filed to August 8, 2025.

Defendant opposes all costs and argues that the motion is untimely, Plaintiff's failure to allow GM to review and discuss a resolution for costs, and that plaintiff has not met its burden. (Defendant's opposition, p. 20).

After reviewing the documents presented, the costs are associated with filing, electronic filing, service, tracking, and delivery and postage fees. The Court awards \$1,843.56 in costs and expenses.

C. MULTIPLIER

Plaintiff seeks a 1.35 enhancer in this matter amounting to \$10,774.40 on the grounds that: (1) "This excellent result alone merits a multiplier enhancement," in reference to the \$70,000.00 recovery. (Plaintiff's motion, at p. 16); (2) the risks that non-recovery or delay was substantial. Plaintiff states that having taken the matter on a contingency basis, it assumed the risk of not getting paid at all or for several years. Thus, it seeks a 1.35 multiplier of \$4,393.38 to reflect the risk of non or delayed payment. (*Id.*) and; (3) Plaintiff argues that the delay of payment justifies a multiplier citing that the complaint was filed on January 18, 2024 and it has not been paid for nearly two years. (*Id.*).

Defendant opposes the multiplier as unwarranted as enhancers are reserved for exception situations and argues that the plaintiff has not met its burden of showing that the case was novel, difficult, or superlative as to the outcome. (Defendant’s opposition, p. 6, and 17-18). Defendant avers that the plaintiff recycled template pleadings, discovery, and motion used in its practice of high volume Song-Beverly claims, yet billed casework as original or unique. Defendant emphasizes that there was no billing activity for over 23 months, and notes that the case settled in less than a year. (*Id.*).

Given the basic nature of the Song-Beverly claim in this matter; lack of showing of bespoke work demonstrating novel or difficult work required in this matter; high volume and type of claims handled by SLP in Song-Beverly matters that would not present a higher risk in contingency cases or inability to take on other cases; early resolution of the matter that did not require further discovery, motions, depositions; the Court does not find that Plaintiff has demonstrated that a multiplier is warranted in this case. Therefore, the Court DENIES Plaintiff’s request for a 1.35 enhancer.

D. ESTIMATED FURTHER FEES AND COSTS

Plaintiff seeks \$2,450.00³ for time to review Defendant’s opposition papers, prepare a reply brief, and anticipated appearance for this hearing. As noted above, Plaintiff filed a reply brief on June 2 addressing the defense’s opposition. It is unclear whether any appearance will be made and if such an appearance is made, how much time would be expended on the straightforward motion after review of the Court’s analysis on the tentative order.

The defendant opposes the motion for this amount on similar grounds stated above.

The Court DENIES the request for \$2,450.00, but GRANTS \$1,190.00 for two hours of time at the hourly rate of \$595.00 for time spent on reviewing, preparing and submitting the reply brief.

IV. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$29,250.82 that consists of \$26,217.26. in attorney’s fees and \$1,843.56 in costs; \$0 for any multiplier as the request for a 1.35 enhancer is DENIED; and \$1,190.00 for preparing and filing reply brief.

Moving party to prepare the formal Order.

Calendar Lines # 5
Case Name City and County of San Francisco vs Matt Pear et al
Case No. 25CV468882
Motion to Bifurcate Trial of Complaint for Declaratory Relief

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

The underlying dispute arises from an 80-foot wide strip of land California (“The Pipeline Property”) bisecting the property located at 555 Showers Avenue and 398 Ortega Avenue in Mountain View, owned by Defendants Pear’s family since the early 1900s and currently Defendants Mark Pears and Matt Pears (“the Pears” or “Cross-Complainants”). (Plaintiff’s Complaint and Declaration of Matt Pearl). In 1949, the City’s Board of Supervisor adopted a resolution to acquire the Pipeline Property for the operation of underground water pipelines as part of the City’s Hetch Hetchy water system. (CCSF’s Complaint). The City filed a complaint against the Pears’

³ The Court notes that this amount reflected in Plaintiff’s reply brief is a reduction from the \$4,000.00 that the plaintiff originally sought as an estimated cost in the moving papers.

grandparents to take the Pipeline Property by way of eminent domain. In 1959 the Pears' grandparents and City reached a resolution with the Pears' grandparents conveying the Pipeline Property to the City through a deed ("1951 Deed"). Since then, the Pipeline Property bisected the Pipeline Property: north parcel and south parcel. The 1951 deed covered certain rights to use the surface of the Pipeline property. (CCSF's Complaint and Declaration of Pear). The Pears' family used the surface for roadways, parking, and landscaping (CCSF's Complaint). During the 1960s, the Pears sought to expand retail use, parking, and landscaping. (*Id.*). A dispute between the Pears and City arose, which was ultimately resolved with a 1967 Permit allowing additional parking and landscaping. (*Id.*). Currently, the north parcel is leased to the operation of Whell Works automobile maintenance and repair shop, and the south parcel is leased to a Target retail store and pharmacy. (*Id.*).

In 2012, the City sought to renegotiate the 1967 Permit and demanded that the Pears pay the fair market value for use of the Pipeline Property. (*Id.*). The Pears objected and CCSF threatened to fence off the property. (*Id.*). This dispute resulted in litigation and a trial was held in March 2017. On July 24, 2017, a judgment was entered in favor of the Pears, confirming their right to use the Pipeline Property as described. This decision was appealed and resulted in a published Court of Appeal decision in *Pear v. City and County of San Francisco* (2021) 67 Cal.App.5th 61. The Court of Appeal held that the Pearls reserved the right to use the Pipeline Property for roadways, grass and other landscaping; Wheel Works operations; and commercial use Wheel Works and Target and for their patrons. (*Id.*). The Appellate Court held that the existing long-term parking area comprising of 75 percent of the Pipeline Property fell outside of the scope of the reserved rights, but allowed for some level of "incidental parking" while limiting the extent of parking allowed altogether. (Cross-Complaint).

In August 2024, the Pears submitted San Francisco with a redesign of the striped parking on the Pipeline Property, reducing the spaces from 98 to 61 to conform with the Court of Appeal's decision. (*Id.*). The Pears provided that the redesign limits the usage of spaces for short-terms stopping for the purposes of pick up and drop off incident to the roadway proving ingress and egress over the Pipeline Property. (*Id.*). However, Cross-Defendants CCSF assert that the rights reserved to the Pears do not include commercial uses or incidental parking without financial terms. (*Id.*).

B. RELEVANT PROCEDURAL BACKGROUND

On June 23, 2025, CCSF filed a Complaint asserting a declaratory relief against the Pears, seeking clarification on how to interpret the 1951 Deed, including the scope of parking permitted under the Deed, if any, and installing barricades fencing off the Pipeline Property.

On August 26, 2025, Defendants Pears filed an Answer and Cross-Complaint alleging seven causes of action: (1) writ of mandamus, enforcement of the California Public Records Act ("CPRA") and/or San Francisco Sunshine Ordinance ("Sunshine Ordinance"); (2) declaratory relief, enforcement of the CPRA and Sunshine Ordinance; (3) breach of implied covenant of good faith and fair dealing regarding THE 1951 Deed; (4) anticipatory breach of contract as to the permit; (5) inverse condemnation; (6) violation of due process under 42 U.S.C. section 1983; and (7) declaratory relief.

On October 30, 2025 CCSF filed a Special Anti-SLAPP Motion to Strike under Code of Civil Procedure section 425.16 four of the Cross-Complaint's Causes of action: third cause of action for breach of covenant of good faith and dealing; fourth cause of action for anticipatory breach; fifth cause of action for inverse condemnation; and sixth cause of action for violation of due process. CCSF asserted that all discovery was stayed pending the motion. Cross-Complaints opposed the motion. CCSF filed a demurrer on November 4, 2025, which the Pears opposed. The Anti-SLAPP motion was originally set for hearing on July 21, 2026 and was advanced to January 6, 2026 by stipulation of the party.

On January 6, 2026, the Honorable Shella Deen heard CCSF's Demurrer and Anti-SLAPP motion. On January 27, 2026, the Honorable Deen entered a ruling on CCSF's Anti-SLAPP Motion, granting and denying in part; and overruling CCSF's demurrer as to the Defendants cross-Complaints as to the first and fourth causes of action, and sustaining the demurrer as to the cross-complaint's fifth and sixth causes of action, with 20 days' leave to amend. On February 19, 2026, the Defendants filed a First Amended Complaint.

On March 20, 2026, CCSF filed a notice of appeal from the January 27, 2026 Order regarding CCSF'S Anti-SLAPP Motion. Defendants also filed an appeal. CCSF asserts that under Code of Civil Procedure section 916, the appeal on its Anti-SLAPP Motion to strike parts of the Pears' Cross-Complainant imposes a stay of the entire action, including its own Complaint.

Defendants/Cross-Complainants oppose this proposition, and on April 22, 2026, Cross-Complainants Pears filed a motion to bifurcate trial of Complaint for Declaratory Relief under Code of Civil Procedure sections 1048, 1060, 598, 1062a. The motion was accompanied by a proof of service indicating mail and electronic mail service on that same day. Defendants Pears seek an order bifurcate the complaint for declaratory relief and setting a bench trial on the Complaint pending appeal of the Anti-SLAPP order as that motion was limited to Defendants Pears cross-complaint.

Plaintiff/Cross-Defendants CCSF opposed the motion and filed opposition papers on May 26, 2026. CCSF argues that the court lacks any jurisdiction to hear the present motion under Code of Civil Procedure section 916 as the appeal stays the action.

Defendants filed a reply brief on June 2, 2026 rejecting CCSF's argument that an automatic stay applies in this matter.

The Court has carefully reviewed the following: Defendants notice motion to bifurcate (totaling 4 pages); Memorandum of Points and Authorities in support of bifurcation (totaling 18 pages); Declaration of Matt Pear in support of bifurcation and attached Exhibit A (totaling 7 pages); Declaration of Angela in support of bifurcation and attached Exhibits 1-9 (totaling 117 pages); CCSF's Opposition (totaling 11 pages); Declaration of Kelly Manion in support of Plaintiff's opposition and attached Exhibit A (totaling 18 pages); Declaration of Ari Baruth in support of Plaintiff's opposition and attached Exhibit B (totaling 12 pages); Defendants Reply brief (totaling 14 pages); and the pleadings.

II. LEGAL STANDARD

A. STAY OF PROCEEDINGS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 916(A)

Pursuant to Code of Civil Procedure section 916(a):

“Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (Code of Civ. Proc., § 916, subd. (a)).

The purpose of section 916(a) “is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.” (*Elsea v. Saberi* (1992) 4 Cal. App. 4th 625,

629). To accomplish this purpose, the California Supreme Court has stated: [S]ection 916, subdivision (a) stays all further trial proceedings 'upon the matters embraced' in or 'affected' by the appeal. In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results. “[W]hether a matter is 'embraced' in or 'affected' by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the 'effectiveness' of the appeal.” (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381).

The trial courts also possess “both the inherent authority and responsibility to fairly and efficiently administer all of the judicial proceedings that are pending before it. (*People v. Engram* (2010) 50 Cal. 4th 1131, 1146). The court's inherent authority includes “the power . . . to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. How this can best be done calls for the exercise of judgment, which must weigh competing interests and maintain an even balance.” (*Briggs v. Brown* (2017) 3 Cal. 5th 808, 852 (quoting *Landis v. North American Co.*, (1936) 299 U.S. 248, 254-255, “[A] stay gives effect to the general rule that a court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.”).

B. SEPARATE TRIALS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 1048(B)

Code of Civil Procedure section §1048(b) provides, as follows, “ The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code of Civ. Proc., § 1048, subd. (b)).

Trial courts have wide discretion in deciding the sequence of issues for trial. (*See* Code Civ. Proc., § 1048; Evid. Code, § 320; *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 504 [“trial courts have broad discretion to determine the order of proof in the interests of judicial economy”]).

“The major objective of bifurcated trials is to expedite and simplify the presentation of evidence.” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888). Bifurcation frequently occurs when the determination of one issue, such as an affirmative defense, renders other issues moot. (*Buran Equipment v. H& C Investment Co.* (1983) 142 Cal.App.3d 338, 343-344). Trial courts also often bifurcate equitable and legal issues, resolving the issues of equity first in order to promote judicial economy. (*Darburn Enters, Inc. v. San Fernando Community Hosp.* (2015) 239 Cal.App.4th 399, 408-409).

It is well settled law that an appeal of ruling denying a special motion to strike automatically “stays all further trial court proceedings on the merits upon the causes of action affected by the motion.” (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 186). In *Varian Medical Systems, Inc.*, the California Supreme Court addressed the issue of whether an appeal from the denial of a special motion to strike under the anti-SLAPP statute effects an automatic stay of the trial court proceedings. The Court concluded that the automatic stay applied to stay all further trial court proceedings on causes of action affected by the anti-SLAPP motion, and that the trial court had accordingly lacked subject matter jurisdiction during the pendency of appeal, so that a judgment for plaintiffs was void. “In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results....A trial court proceeding also affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.” (*Varian Medical Systems, Inc. v. Delfino*, *supra*, 35 Cal.4th at 189).

As a general rule,

“the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” [Citation.] The purpose of the automatic stay provision of [Code of Civil Procedure] section 916, subdivision (a) “is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.” [*Varian Medical Systems, Inc. v. Delfino, supra*, 35 Cal.4th at 189).

Effectively, section 916(a) “stay” means that, upon timely filing of a notice of appeal, the trial court is *divested of power* to act on matters “embraced in” or “affected by” the appealed judgment or order: Jurisdiction over the appealed matters *shifts to the court of appeal* and is *terminated in the trial court*; and the trial court’s power to *enforce, vacate or modify* the appealed judgment or order is *suspended* while the appeal is pending. [Citations.] (Eisenberg, et al., Cal. Practice Guide: Civ. Appeals and Writs (The Rutter Group December 2023 Update) ¶ 7:2, emphasis in original). Indeed, “[f]urther trial court proceedings in contravention of the [section] 916 stay are *in excess of the court’s jurisdiction in its “fundamental sense”* and thus *void[.]*” (*Ibid.*, emphasis in original.)

C. ORDER TO PROCEED WITH TRIAL UNDER CODE OF CIVIL PROCEDURE SECTION 598

Pursuant to Code of Civil Procedure section 598:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof, and the decision of the court, or the verdict of the jury upon such issue so tried is in favor of any party on whom liability is sought to be imposed, judgment in favor of such party shall thereupon be entered and no trial of other issues in the action as against such party shall be had unless such judgment shall be reversed upon appeal or otherwise set aside or vacated. If the decision of the court, or the verdict of the jury upon the issue of liability so tried shall be against any party on whom liability is sought to be imposed, or if the decision of the court or the verdict of the jury upon any other issue or part thereof so tried does not result in a judgment being entered pursuant to this chapter, then the trial of the other issues or parts thereof shall thereafter be had at such time, and if a jury trial, before the same or another jury, as ordered by the court either upon its own motion or upon the motion of any party, and judgment shall be entered in the same manner and with the same effect as if all the issues in the case had been tried at one time. (Code of Civ. Proc., § 598).

D. DECLARATORY RELIEF UNDER CODE OF CIVIL PROCEDURE SECTION 1060 AND 1062.3(A)⁴

Pursuant to Code of Civil Procedure section 1060, declaration relief arises when:

⁴ Cross-Complainant Pears refers to California Code of Civil Procedure section 1062a, but effective 2025, this section was added by renumbering section 1062.3.

“Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought.”

“[U]nder California rules, an actual controversy that is currently active is required for such relief to be issued, and both standing and ripeness are appropriate criteria in that determination.” (*Travers v. Loudon* (1967) 254 Cal.App.2d 926, 931). “[Declaratory relief] serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*).

Section 1062.3(a) provides:

“Except as provided in subdivision (b), actions brought under the provisions of this chapter shall be set for trial at the earliest possible date and shall take precedence over all other cases, except older matters of the same character and matters to which special precedence may be given by law.” (Code of Civ. Proc., § 1062.3(a)).

III. ANALYSIS

Cross-Complainants Pears assert that a cross-complaint creates an action distinct and separate from the complaint. (Cross-Complainants, Memorandum of Points and Authorities, p. 8). Thus, regardless of how the Court of Appeal rules on the Anti-SLAPP appeal, the Cross-Defendant’s Complaint will remain. (*Id.*). Thus, Cross-Complainants seek that an appeal does not trigger an automatic stay on the entire proceedings, namely CCSF’s Complaint. (*Id.*). Thus, the Cross-Complainant argues that the Court can sever CCSF’s Complaint and order the parties proceed to trial on the Complaint pending appeal on the Anti-SLAPP motion that relates to the Cross-Complaint. (*Id.*). Therefore, Cross-Complainants avers that the court can and should sever and order parties to proceed with trial under Code of Civil Procedure sections 1048(b) and 598 (*Id.*, at p. 8-9). Cross-Complainants assert that *Varian Medical Systems, Inc.*, is inapplicable in this case as the appeal does not affect the merits of the Complaint. (*Id.*, at p. 11).

Cross-Complainants also argue that because the Cross-Defendant’s Complaint comprises of declaratory relief under Code of Civil Procedure section 1060, which addresses future rights and actions. (Cross-Complainants, Memorandum of Points and Authorities, p. 9). Thus, regardless of the status of the Pears’ Cross-Complaint addressing CCSF’s past wrongs, and regardless of CCSF’s Anti-SLAPP appeal, the Court should declare the parties’ rights in the Pipeline Property and not execute on the rights. (*Id.*).

The Pears emphasize that Anti-SLAPP appears have been recognized by the California Supreme Court for the potential of abuse as trial strategy to delay litigation. (*Id.*). Cross-Complainants point that further delay of litigation presents hardship for the Pears, who continue to suffer from uncertainty over the Reserved Rights and Permits rights of the Pipeline Property. (*Id.*). Cross-Complaints claim to have claimed prejudice by the delay as the continued litigation and stay has adversely impacted its ability to renegotiate contracts with Target.

Cross-Defendants CCSF repudiates Cross-Complainants assertions and emphasizes that the appeal of the Anti-SLAPP motion both parties trigger an automatic stay pursuant to section 916(a) and *Varian Medical Systems, Inc.* (Cross-Defendant's Opposition, p. 2). Cross-Defendants avers that that the Pears specifically assert the Cross-Complaint as a defense to the Complaint and both pleadings arise from the same facts and documents. (*Id.*). Thus, bifurcation would defeat the purpose of an Anti-SLAPP motion to avoid unnecessary litigation and conflict with the purpose of that statute. (*Id.*). Cross-Defendants CCSF emphasizes that this court lacks jurisdiction pending the appeal pursuant to section 916(a). Bifurcating the complaint and setting a trial on the Complaint “. . . would impermissibly require the Court and the parties to litigate issues specifically raised in the appeals including: 1) the validity of the Pears' legal contentions, 2) the factual issues underpinning both the Complaint and Cross-Complaint, and 3) litigation privileged communication. Any ruling in favor of the Pears at the trial court level on these issues is irreconcilable with a ruling by the appellate court in favor of the City.” (*Id.*, at p. 5). CCSF asserts that if it prevails on its Anti-SLAPP appeal, the Pears will be barred from asserting the defenses raised in the Complaint and Cross Complaint. (*Id.*).

Cross-Defendants CCSF asserts that proceeding with the Complaint would require the court to adjudicate facts that underpin the claims on appeal as the Complaint and Cross-Complaint allege many of the same facts including: location of the Pipe Property; history of its purchase; existence of the Deed and Permit; ruling in *Pear v. CCSF*; and the City's rejection of the Pear's redesign of the parking scheme. (Cross-Defendant's Opposition, p. 6). Due to the overlapping nature of the allegations in both sets of pleadings, bifurcating and setting a trial on CCSF's Complaint would unavoidable require assessing the weight and facts alleged in the Cross-Complaint. (*Id.*). Thus, Cross-Defendants CCSF contends that under *Varian Medical Systems, Inc.*, adjudication on the Complaint explicitly goes “to the merits of the issues involved in the main issue.” (*Id.*, citing, *Varian Medical Systems, Inc. v. Delfino*, *supra*, 35 Cal.4th at 193). Specifically, proceeding with the Complaint would require the court to potentially consider litigation privileged communication, which is the basis of the Pears' SLAPP claims. (*Id.*).

Cross-Defendants CCSF contend that even though the Anti-SLAPP motion was filed on the Cross-Complaint rather than the Complaint, the merits of the underlying declaratory relief claim were “embraced” or “affected” by the pending appeal and thus requires a stay on trial court proceedings. (*Id.*, at p. 6-7, citing *City of Santa Monica v Stewart* (2005) 126 Cal.App.4th 43, 79-80 and *Young v. Tri-City Healthcare District* (2012) 210 Cal.App.4th 51-52). CCSF avers that the Complaint is not a collateral matter to the issues raised in the Anti-SLAPP motion to the Cross-Complaint based on the same subject matter at issue. (*Id.*). CCSF rejects the Pears argument that the Complaint is ancillary and attacks the basis of its cases as predating the anti-SLAPP statute (referring to the Pears' reference to *Botsford v. Pascoe* (1979) 94 Cal.App.3d, 62) and not involving Code of Civil Procedure 916(a) and asserts that the trial court may not take further action that would alter the status quo of claims subject to an Anti-SLAPP motion and Appeal. (*Id.* at p.8.). CCSF contends that the Pears fail to cite authority providing the court to sever claims that conflict with the Anti-SLAPP appeal. (*Id.*, at p. 9). Rather, CCSF asserts that sections 1048(b), 598, 1060, 1062.3(a) provide this court with discretion to bifurcate and set trial on the Complaint pending the appeal and trumping section 916(a). (*Id.*). CCSF asserts that the stay also further promotes the interest of justice and judicial economy as it require the court to revisit the same testimony and documents and increase the chance of inconsistent outcomes and unnecessary duplication. (*Id.*, at p. 10).

Cross-Complainants rejects Cross-Defendants CCSF's assertion that bifurcation and trial setting would be an adjudication on the merits. (Cross-Complainants' Reply, p. 2). The Pears assert that because a trial of the Complaint will occur regardless of the outcome of the Anti-SLAPP appeal, the complaint is ancillary to the appeal and because appeal does not stay ancillary matter, it does not stay trial on the Complaint. (*Id.*, at p. 3). Despite seeking a jury trial, the Pears argue that the court may set the Complaint for a bench trial. (*Id.*). Cross-Complainants also repudiate that Cross-Defendants interpretation of *Varian Medical Systems, Inc. v. Delfino*, *supra*, 35 Cal.4th 180 (unlike in this matter, *Varian* dealt with an Anti-SLAPP motion that encompassed all of the

plaintiff's causes of action); *City of Santa Monica v Stewart* (2005) 126 Cal.App.4th 43 (unlike in this matter, *City of Santa Monica* involved a motion to strike the entirety of a cross action); and *Young v. Tri-City Healthcare District* (2012) 210 Cal.App.35 (unlike in this matter, *Young* involved a motion for reconsideration and did not involve any cross-action or cross complaint) as factually distinguishable. (Cross-Complainants' Reply, p. 3-5).

The Court finds that given that there are so many overlapping facts such as the location of the Pipe Property; purchase history; existence of the and terms of the 1951 Deed and Permit; ruling in *Pear v. CCSF*; and dealings regarding the Cross-Complainants 2024 redesign and submission of the parking scheme in accordance with *Pear v. CCSF* ruling and the City's rejection that are present in the Complaint and Cross Complaint as well as privileged litigation communications involved in the Cross-Complaint in the appeal that may require a court to consider such evidence if the Complaint was bifurcated, the court finds that the facts are inextricably intertwined. The court notes that the purpose of section 916(a) is to protect the jurisdiction of the appellate courts by preserving the status quo until the appeal is decided. To court cannot bifurcate the Complaint as underlying issues are embraced or affected by the appeal of the Anti-SLAPP motion of the Cross-Complaint. The court takes into consideration the interest of judicial economy, efficient, and justice to promote a consistent result as best being served by a stay.

IV. CONCLUSION

Based on the foregoing, Cross-Complainants Pears motion to bifurcate is DENIED. The Court will prepare the formal Order.

Calendar Lines # 6

Case Name Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al

Case No. 25CV481376

Motion to Confirm Arbitration Award

I. BACKGROUND

On April 17, 2026, Petitioner Twomagnets LLC d/b/a Clipboard Health ("Clipboard Health") filed this motion to confirm a September 5, 2025 arbitration award in favor of Clipboard Health and against respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC. The motion was accompanied by a proof of service indicating overnight service and electronic service to Altitude Health Service and Palos Heights Rehabilitation—nonparties—on that same day.

On May 1, 2026, petitioner submitted a Notice of Errata, submitting that the attached proof of service to the nonparties was in error and submitted proof of service to the respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC indicating mail service on April 17, 2026 as well as proof of service of the notice of errata on May 1, 2026 via mail service.

The motion is unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: Petitioner Clipboard Health's Notice and Memorandum of Points and Authorities for a Motion to Confirm Arbitration Award (totaling 11 pages); Declaration

of Samay Jhunjhunwalla and attached Exhibits A-B and Declaration of Aaron B. Bloom and attached Exhibits C-D in support of the petitioner's motion (totaling 68 pages); proofs of service; notice of errata (totaling 6 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure sections 1285 and 1286, any of the parties may file a petition with the court, which must then "confirm the award, correct and confirm it, vacate it, or dismiss the petition." (Code Civ. Proc. §§ 1285, 1286; *EHM Productions, Inc. v. Starline Tours of Hollywood, Inc.* (2018) 21 Cal.App.5th 1058, 1063). Once arbitration is concluded, "any arbitrator's award is enforceable only when confirmed as a judgment of the superior court." (*O'Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 278). "It is well settled that the scope of judicial review of arbitration awards is extremely narrow." (*California Faculty Assn. v. Superior Court* (1998) 63 Cal.App.4th 935, 943). "Neither the trial court, nor the appellate court, may 'review the merits of the dispute, the sufficiency of the evidence, or the arbitrator's reasoning, nor may we correct or review an award because of an arbitrator's legal or factual error, even if it appears on the award's face.'" (*EHM Productions, supra*, at pp. 1063-64).

A. FILING REQUIREMENTS

Code of Civil Procedure section 1285.4 requires: "A petition under this chapter shall:

- a. Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.
- b. Set forth the names of the arbitrators.
- c. Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any."

B. SERVICE OF THE ARBITRATION AWARD AND TIMELINESS OF PETITION

Code of Civil Procedure section 1283.6 provides that: "The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." In addition, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc., §§ 1288, 1288.4).

C. SERVICE OF PETITION AND NOTICE OF HEARING

Under Code of Civil Procedure section 1290.4, which governs proper service of this motion states, in pertinent part:

- a. "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.
- b. (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision:
 - (1) Service within this State shall be made in the manner provided by law for the service of summons in an action."

III. ANALYSIS

Petitioner seeks an order confirming the arbitration award issued on September 5, 2025.

Here, Petitioner submits the written Final Award issued by the Arbitrator. (Declaration of Bloom; Exhibit B). Petitioner also submits a copy of the arbitration agreement between the parties. (Petitioner's motion, Exhibit A.) Petitioner has satisfied the filing requirements.

Petitioner submits a letter showing the Final Award was served by JAMS on September 5, 2025. (Declaration of Bloom; Exhibit B). Petitioner filed a verified petition to confirm the award on January 21, 2026. The motion is timely.

Petitioner served Respondents with a copy of the verified petition by mail on April 17, 2026. Petitioner demonstrates that the petition and notice of hearing were properly served.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the unopposed motion for order to confirm the arbitration award is GRANTED. Moving party to prepare the formal Order.